ORDINANCE NO. 341

AN ORDINANCE CREATING A CITY

BOARD OF APPEALS OF Rector, ARKANSAS

Be it ordained and enacted by the City Council of the City of Rector, Arkansas:

Section 1. There is hereby created a Board of the City of Rector, Arkansas, to be known as the "City Board of Appeals," which said Board shall consist of 5 members who shall meet on call by the Mayor, shall serve without compensation and of which not more than one-third shall hold any other municipal office or appointment.

Section 2. The Board of Appeals shall have all the duties and functions authorized by Act 629 of the General Assembly of Arkansas, 1969.

Section 3. The members of the Board of Appeals shall be appointed by the Mayor and his appointments shall be valid and effective upon confirmation by the City Council. Members of the Board of Appeals may be suspended or removed from the Board by the Mayor for just cause and such actions shall be final upon approval of the City Council.

Section 4. Cause for removal from the Board of Appeals shall be the same as for other appointive offices of the City of Rector, except that Board members may be suspended or removed from office by the Mayor for non-attendance of called meetings.

Section 5. The terms of members of the Board of Appeals shall be three (3) years. However, in the initial appointments to the Board, the Mayor shall appoint two members for a term of one year, two members for a term of two years, and one member for a term of three years. Thereafter as vacancies occur on the Board of Appeals, said vacancies shall be filled for a term of three years and said appointees shall hold office until expiration of the term to which appointed. All members of the Board of Appeals whose terms expire shall serve until their successors in office have been duly appointed and confirmed. Should a member of the Board of Appeals fail to complete the term of office to which appointed due to death, illness, or removal for cause, a person shall be appointed to serve out the remainder of the term as provided in Section 3.

Section 6. All ordinances or parts of ordinances in conflict or inconsistent with the provisions of this ordinance are hereby repealed to the extent necessary to give this ordinance full force and effect.

Section 7. The sections, provisions, paragraphs or clauses of this ordinance are hereby declared to be severable. Should any section, provision, paragraph or clause of this ordinance be held invalid by a court of competent jurisdiction, the holding shall not effect the validity of any other portion of said ordinance.

Section 8. It being immediately necessary for the preservation of the public peace, safety, health, comfort, convenience, morals, and general welfare of the City of Rector, an emergency is declared to exist and this ordinance shall have full force and effect from and after its passage and adoption.

PASSED AND ADOPTED THIS 9th day of January, 1978.

SIGNED: J H Hobbs
Mayor

ATTEST: Donna Reed
City Recorder

I, Donna,Reed, recorder-treasurer of the City of Rector do hereby certify that this is a true and correct copy of this Ordinance #341 on file in the permanant book of ordinances at city hall.

WITNESS my hand and the seal of Rector, Arkansas, this 11th day of January, 1978.

Donna Reed
City Clerk

City Seal:

